

		judge Plaintiff's case as one of the "rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose." <i>Kumar v. Ramsey</i> (2021) 71 Cal.App.5th 1110, 1120. Accordingly, the motion is denied. Including the above, and also based on the totality of the file and record in this case, Defendant has not carried his high burden sufficient to allow the granting of the motion. <i>Kojababian v. Genuine Home Loans, Inc.</i> (2009) 174 Cal.App.4th 408, 420-421. Moving party to give notice.
2	Brown vs. Podlubny 2025-01488249	Motion to Compel Further Responses to Form Interrogatories Motion to Compel Further Responses to Form Interrogatories Motion to Compel Further Responses to Special Interrogatories Motion to Compel Further Responses to Special Interrogatories Motion to Compel Production Motion to Compel Production Defendant Dmitriy Vladimirovic Podlubny, aka Dmitriy Podlubny ("Defendant"), seeks an order compelling further responses to form interrogatories, set one, special interrogatories, set one, and requests for production, set one, propounded on Plaintiffs Justin Brown and Lana Brown (collectively, "Plaintiffs"). Defendant also seeks monetary sanctions in the amount of \$3,623.30 against Plaintiffs and Plaintiffs' counsel of record. Defendant seeks an order compelling each plaintiff to serve further responses to form interrogatory numbers 4.1, 6.3, 6.5, and 7.3, special interrogatory numbers 11, 15, 17, 18, 20, 23, 25, 26, 28, 29, 31, 32, 33, 34, 36, 37, 38, 40, 41, 43, 44, 46, and 47, and request for production numbers 2-33. Plaintiffs contend the motion is moot or reduced to a handful of residual issues after Plaintiffs twice supplemented the discovery at issue. (Opposition, 2:6-8; Luton Decl., ¶¶ 5, 6, 8, and 11, Exhibit 2.) Plaintiffs only provided a copy of the second set of Plaintiffs' supplemental responses to Special Interrogatories and Requests for Production. Plaintiffs did not submit any evidence showing whether the following discovery was supplemented in the first set of supplemental responses served on April 15, 2026: form interrogatory numbers 4.1, 6.3, 6.5, and 7.3, special interrogatory numbers 18, 20, 32, 33, 34, 40, 44, and 47, and request for production numbers 5, 9,

		11-17, 20, 21, 28, and 31-33. Defendant's reply contends Plaintiffs' April 15, 2026 supplemental responses supplemented 27 interrogatories and 32 requests for production, which is the same number of requests at issue in this motion. (Reply, 3:7-9.) The parties are ordered to appear and confirm which of these interrogatories and requests, if any, were supplemented in the April 15, 2026 supplemental responses.
3	Clark vs. Streamline Performance Inc 2025-01456342	Motion to Compel Arbitration Defendants Streamline Performance, Inc. dba Peachtree Debt Relief's ("Streamline"), KVC Group, LLC dba National Credit Partners', Michael Nguyen's and Kim Vo's motion to compel arbitration is granted. Plaintiff's request for judicial notice is granted. Defendant submits evidence showing that on 11/9/22, in connection with his employment onboarding with Streamline, Plaintiff received and signed the Arbitration Agreement, which states in part: This Agreement to Arbitrate (hereinafter "Agreement") is entered into by and between Streamline Performance Inc dba Peachtree Debt Relief and its subsidiary and affiliated companies, and each of their officers, directors, agents, benefit plans, insurers, successors, and assigns (hereinafter collectively the "Company") and Employee.... The Company and Employee mutually agree that any dispute or controversy arising out of or in any way related to any Disputes shall be resolved exclusively by final and binding arbitration pursuant to the Federal Arbitration Act. Such arbitration shall be held in Orange County, California pursuant to the Model Rules for Arbitration of Employment Disputes of the American Arbitration Association then in effect, which can be found at: https://www.adr.org/sites/default/files/Employment%20Rules.pdf. For purposes of this Agreement, the term "Disputes" means and includes any claim or action arising out of or in any way related to the hire, employment, remuneration, separation or termination of Employee. [...]